

File No.: EXP202312961

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 13, 2023, the Director of the Spanish Agency for Data Protection issued a resolution in the sanctioning procedure of file number EXP202105262 followed against A.A.A. (hereinafter, the respondent). In this resolution, in addition to imposing a fine, the following measures were required:

“SECOND: ORDER A.A.A. with NIF ***NIF.1, pursuant to Article 58.2.d) of the GDPR, for a violation of Article 13 of the GDPR classified in Article 83.5.b) of the aforementioned Regulation, to complete the privacy policy on its website within 30 days from the date this resolution becomes enforceable, as personal data is collected, and to communicate its compliance to the AEPD.”

SECOND: The resolution of the sanctioning procedure, which granted a period of thirty days for the adoption of the imposed measures, was notified to the respondent, in accordance with the provisions established in Articles 42 and 44 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), by means of an announcement published in the Official State Gazette dated April 17, 2023, after two unsuccessful attempts at postal notification to the tax address provided by the State Agency for Tax Administration, as evidenced in the file.

THIRD: After the expiration of the granted period without any written communication regarding the implemented measures being received by this Agency, the respondent was again requested to provide evidence to this Agency of having adopted the appropriate corrective measures within a period of ten working days, in accordance with what was agreed in the aforementioned Resolution.

This request was Returned to Sender due to Excess (not collected at the office) by the postal service on August 9, 2023, after two unsuccessful delivery attempts at the respondent's tax address, as evidenced by the acknowledgment of receipt in the file.

FOURTH: With a dispatch registration date of August 31, 2023, and registration number REGAGE23s00058019999, as a supplement to the previous notifications, a new communication of the compliance request of the aforementioned Resolution was sent to the respondent's tax address by ordinary postal mail, to be deposited in their mailbox.

FIFTH: The respondent has not sent any response to this Agency that proves compliance with the imposed measures.

C/ Jorge Juan, 6
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SIXTH: Against the aforementioned resolution, which requires the adoption of measures, no ordinary administrative appeal can be made due to the expiration of the established deadlines for such. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed or that a precautionary suspension of the resolution has been requested.

SEVENTH: On October 18, 2023, the Director of the Spanish Agency for Data Protection decided to initiate a sanctioning procedure against the respondent for the alleged violation of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR.

EIGHTH: The initiation agreement of the present sanctioning procedure was notified to the respondent, in accordance with the provisions established in the LPACAP, by means of an announcement published in the Official State Gazette dated November 24, 2023, after two unsuccessful attempts at postal notification at their tax address, as evidenced in the file.

NINTH: Once the aforementioned initiation agreement was notified in accordance with the provisions established in the LPACAP and the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the violation of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in the present procedure,

PROVEN FACTS

FIRST: The resolution of the sanctioning procedure and the requests for compliance with the measures imposed therein, indicated in the first to fourth backgrounds, were notified in accordance with the provisions of the LPACAP. This resolution became final and enforceable due to the expiration of the deadlines provided for the filing of the appeals indicated therein.

SECOND: The respondent has not sent any response to this Agency that proves compliance with the imposed measures.

THIRD: The initiation agreement of the present sanctioning procedure was notified

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3/6

to the party being claimed against, in accordance with the provisions of Article 44 of the LPACAP, by means of an announcement published in the Official State Bulletin dated November 24, 2023, after two unsuccessful delivery attempts at their registered address.

FOURTH: The party being claimed against has not submitted any allegations regarding the initiation agreement of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation Breached

According to the available evidence, it is considered that the party being claimed against has breached the resolution of the Spanish Agency for Data Protection regarding the measures imposed on them. Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the party being claimed against, for violation of Article 58.2.d) of the GDPR, which states the following:

“2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame;”

III

Classification and Qualification of the Infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

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4/6

“Failure to comply with the resolutions of the supervisory authority under Article 58, paragraph 2, shall be sanctioned in accordance with paragraph 2 of this article with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the preceding financial year, opting for the higher amount.”

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“m) Failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679.”

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

It is noted that no mitigating or aggravating factors apply.

In light of the facts presented, it is considered appropriate to impose a sanction on the party being claimed against for the violation of Article 58.2 of the GDPR classified under Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 400.00 euros.

V

Adoption of Measures

This Agency agrees to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may “order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of a further sanctioning administrative procedure.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

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5/6

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 58.2 of the GDPR,

classified under Article 83.6 of the GDPR, a fine of 400.00 euros (FOUR HUNDRED euros).

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, pursuant to Article 58.2.d) of the GDPR, within a period of 30 days from the date this resolution becomes enforceable, to provide evidence to this body of the adoption of all measures ordered in the Resolution of the sanctioning procedure of file number EXP202105262.

THIRD: TO NOTIFY this resolution to A.A.A.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period. Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGGD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGGD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal.

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6/6

If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not have knowledge of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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